

**EDUCATIONAL ASSESSMENT AND EXAMINATIONS SERVICE (EAES) A NATIONAL
EXIT EXAMINATION PREPARED FOR STUDENTS OF ETHIOPIAN LAW SCHOOLS**

ACADEMIC YEAR 2003 – 2015 E.C. Criminal Law

1. A goes to a party and asks his friend B to bring him a non-alcoholic beer. Unbeknownst to him, B returns with a glass of ordinary beer. After consuming several glasses, A gets in to a car and because of his intoxication, he loses control and causes injury to a pedestrian. Which one of the following is true according to the Criminal Code of Ethiopia?

- A. Intoxication would be a defense to any crime that requires proof of knowledge and purpose**
- B. A can raise the defense of intoxication so long as it was involuntary**
- C. He can't raise the defense of intoxication at all as he was at fault in putting himself at the party in the first place**
- D. Even if it were involuntary he can be charged for crimes against public safety**

2. In Ethiopia, the determination of the degree of individual guilt requires the consideration of all but one of the following factors.

- A. The age of the criminal.**
- B. The level of education of the criminal.**
- C. The nationality of the criminal.**
- D. The gravity of the crime committed.**
- E. None.**

3. Procuring the means or creating the conditions for the commission of a crime is not always punishable under Ethiopian Law. True/false

4. Under the FDRE Criminal Code, robbery is different from theft in that:

- A. it involves abstracting other's property.**
- B. it could be committed with the intent to get unlawful enrichment.**
- C. it could be committed to enable a third party to obtain unlawful enrichment.**
- D. it involves violence or intimidation.**
- E. All.**

5. Which one of the following penalties does not apply to petty offences?

- A. Arrest.**
- B. Imprisonment.**
- C. Fine.**
- D. A and B.**
- E. B and C.**

6. One of the following is not true about the purpose punishment under the FDRE Criminal Code.

- A. Deterring criminals from committing further crimes.**
- B. Using criminals as means to give lesson to the public that criminal behaviours are not tolerated.**
- C. Facilitating the rehabilitation of criminals.**
- D. Showing criminals that they deserve penalties for their illegal conducts.**
- E. None.**

7. In order to invoke the defence of necessity, the defendant has to explain to a court that:

- A. he was forced by another person to take the action he took.**
- B. he was obeying the order of his superior.**
- C. he was forced to take the measure he took by the force of nature.**
- D. though it was not intended, his action averted a more serious and imminent danger.**
- E. C and D**

8. Which one of the following could be regarded as a special crime under the Criminal Code?

- A. Theft.**
- B. Terrorism.**
- C. Incest.**
- D. Espionage.**
- E. None.**

9. In Ethiopia, if a judge decides to impose death penalty on a criminal who is charged for the commission of concurrent crimes and the death penalty is necessitated because of the seriousness of one the crimes, which one of the following systems of calculating penalty can best justify the judge's sentencing?

- A. The System of Aggravation.**
- B. The System of Absorption. .**
- C. The System of accumulation/adding-up/.**
- D. All**

10. One of the following is not recognized as an element of the principle of legality in the Criminal Code.

- A. No law, no offence.**
- B. No law, no punishment.**
- C. Enforcement of punishment in a prescribed manner.**
- D. Creation of offence and punishment by analogy.**
- E. None.**

11. In principle, which one of the theories of causation does the Criminal Code recognize?

A. *Sin quo non* (but-for) theory.

B. Proximate cause theory.

C. Adequate causes theory.

D. Last act theory.

E. None.

12. Material concurrence is best explained by one of the following expressions.

A. Raping a man at a public place.

B. Shooting a man on his chest which causes bleeding and then death.

C. Throwing a bomb on a group of standing people and killing them all.

D. Breaking into someone's house and assaulting the occupants.

E. None.

13. An accessory after the fact is:

A. A principal participant in the commission of a crime.

B. A secondary participant in the commission of a crime.

C. Liable to punishment provided for the crime the assisted person commits.

D. A crime against administration of justice.

E. None.

14. A lawful act is not:

A. An act performed to discharge public duty.

B. An act performed to discharge military duty.

C. An act performed under state of necessity.

D. An act performed to exercise a private right.

E. an act performed to exercise ones profession with prudence and according to accepted practice of the profession concerned.

15. Identify a factor that is different from the other relation to sentencing a criminal

- A. Committing a crime due to ignorance.**
- B. Committing a crime due to great material distress.**
- C. Committing a crime by joining hands with others.**
- D. Committing a crime because of serious provocation.**

16. Which one of the following crime is not a special crime?

- A. Perjury.**
- B. Murder.**
- C. Desertion.**
- D. Corruption.**
- E, Homosexuality.**

17. Which one of the following is not true about death penalty?

- A. It can be imposed on all criminals that have committed crimes carrying death penalty.**
- B. It is the ultimate penalty for a criminal.**
- C. It is the most symbolic reminder of the power of a state to punish its citizens.**
- D. It is the most draconian criminal sanction.**
- E. It is one of the most divisive issues in the field of criminal law.**

18. Which one of the following choices can better explain the principle of no law.no offence?

- A. Criminal punishment must be executed in a manner provided by law.**
- B. An omission may entail punishment even if it does not constitute a crime when it happens.**
- C .Any criminal provision which favours a suspect must be applied even retroactively.**
- D. An act that does not constitute a crime when it is done does not entail penalty.**
- E. An act can be criminalized even if it is not expressly declared so if another similar act is expressly criminalized.**

19. Assume the Criminal Code contains the following provision: "any public official who receives bribe with a view to get unlawful enrichment shall be liable to rigorous imprisonment not exceeding 10 years". What is the required moral element of this crime?

- A. Advertent negligence.
- B. Direct intention.
- C. Doluse ventualis.
- D. Indirect intention.
- E. Knowledge of near certainty.

20. In principle, which one of the following persons can be characterized as more dangerous?

- A. An author of a complete attempt.
- B. An author of an incomplete attempt.
- C. A person who renounces his criminal design.
- D. A person who attempts to commit an impossible offence.
- E. A person who completes his preparation to commit a crime but does not proceed with his plan.

21. Assume the FDRE Parliament has issued a pew proclamation to deal with a specific kind of crime. How do you explain the relationship between this Proclamation and the Criminal Code?

- A. The general principles of the Criminal Code apply to the crime covered by the Proclamation at all times.
- B. There cannot be any relationship whatsoever between the two laws.
- C. The general principles of criminal law embodied in the Proclamation override the general principles in the Criminal Code.
- D. Whenever conflict arises between the two laws, the Criminal Code provisions prevail.
- E. The provisions of the Proclamation must be treated as gap-filling for the Criminal Code.

22. From the list of crimes given below, identify the one that can be regarded as a crime of true omission.

- A. A lifeguard intentionally allowing a baby to drown in a swimming pool.**
- B. Becoming a dangerous vagrant.**
- C. A soldier shooting a peaceful civilian.**
- D. Being found in possession of unjustified and suspicious objects.**
- E. A highly profitable trader failing to pay tax as required by law.**

23. On the eve of their public law exit exam, five law students (K, L, M, N, and O) are arguing about which specific provision of the Criminal Code criminalizes homicide. All of them mention different articles from the Code. Consider the articles they mention and tell who is right.

- A. K says it is art. 539.**
- B. L mentions art. 540.**
- C. M mentions art. 539-541.**
- D. N argues for art.539-541 and art. 543.**
- E. O says it is art. 538.**

24. Which one of the following is correct about mistake and ignorance of law?

- A. Ignorance represents lack of correct understanding of a law while mistake represents lack of knowledge about a law's presence.**
- B. Both mistake and ignorance of law represent lack of awareness about the existence of a law.**
- C. Both ignorance and mistake of law represent misinterpretation a law.**
- D. Mistake represents misunderstanding a law whereas ignorance represents lack of awareness of law's existence.**
- E. Both ignorance and mistake of law entail the same treatment under the Criminal Code.**

26. Who is a moral offender?

- A. A person who designs, supports, and leads the commission of a crime.**
- B. A person who gives marginal support for the commission of a crime.**
- C. A person who uses an infant to commit a crime**
- D. A person who hides a highly wanted criminal. .**
- E. A person who pulls a trigger and kills another**

27. Which one of the following theories is not related to the determination of the liability of a subordinate who executes an unlawful order of his superior?

- A. Theory of blind obedience.**
- B. Theory of passive obedience.**
- C. Theory of intelligent infantry.**
- D. Theory of irresistible impulse.**
- E. Theory of manifest illegality.**

28. Which one of the following sentences is not correct about the rule of strict construction (interpretation) of criminal law?

- A. The rule requires narrow interpretation of criminal law at all times.**
- B. The rule is used when the provision of a criminal law is equivocal.**
- C. It applies only after the other rules of interpretation fail to solve the issue of interpretation.**
- D. As a last resort, the rule requires interpreting the provision of a criminal law in a way that favors the accused.**
- E. The rule is not explicitly recognized under the Criminal Code of Ethiopia.**

29. Except one, all of the following choices express-the different ways in which a retroactive criminal law manifests itself. Identify the exception.

- A. A criminal law that makes prior acts illegal.**
- B. A criminal law that increases punishment for a crime committed before its enactment.**
- C. A criminal law that increases the severity of a crime after the crime was committed:**
- D. A criminal law that changes procedural rules to increase accused's chance of conviction.**
- E. A criminal law that allows application of repealed laws to crimes committed under their regimes.**

30. The following article is a modified version of art. 13 (1) (a) of Ethiopia's new Corruption Crimes Proclamation No.881/2015. Read the article and answer the question that follows. "Any public servant who, with intent to obtain for himself an undue advantage, and by using his power, improperly takes, by concluding a contract, an advantage in a business shall be punishable with simple imprisonment." What is the specific moral element that is required to apply this article?

- A. Direct intention. ..**
- B. Indirect intention.**
- C. Advertent negligence.**
- D. Inadvertent negligence.**
- E. Intention in general.**

31. One of the following categories of individuals is absolutely free from the provisions of the criminal law of Ethiopia. Who are they?

- A. Insane persons.**
- B. Intoxicated persons.**
- C. Persons under the age of nine.**
- D. Young persons.**
- E. Coerced persons.**

32. A crime of possession is different from other kinds of crimes because:

- A. it forbids doing an act that is harmful to the society.**
- B. it compels individuals to do acts that are deemed necessary.**
- C. it penalizes individuals with certain status/qualities.**
- D. it penalizes individuals who are found having/possessing certain items.**
- E. it penalizes individuals for being negligent.**

33. Article 420(1) of the Criminal Code states;" Any public servant who fails to carry out his duties in a proper manner and to the prejudice of State, public or private interest. is punishable with fine not exceeding one thousand Birr or simple imprisonment not exceeding six months." What specific moral element does this article require?

- A. Direct intention**
- B. Indirect intention**
- C. Advertent negligence**
- D. Intention in general**
- E. Both intention and negligence**

34. In light of the relevant provisions of the Criminal Code, which one is NOT correct about renunciation and active repentance?

- A. Both of them represent attempt to commit crimes.**
- B. Active repentance represents completed attempt.**
- C. Both of them represent incomplete attempt.**
- D. Both of them can be used to mitigate penalty.**
- E. Active repentance may entail exemption from penalty.**

35. Identify the test that may NOT be used to prove insanity in general.

- A. Blind obedience test**
- B. Irresistible impulse test**
- C. Product (Durham) test**
- D. Right-wrong test**
- E. Substantial capacity test**

36. Which of the following comes first in the realization of the object and purpose of criminal law?

- A. Providing for punishment of criminals**
- B. Giving due notice of the crimes and penalties prescribed by law**
- C. Imposing swift and proportional punishment against offenders**
- D. Making prisons rehabilitative institutions**
- E. Suspending execution of penalties**

37. Which of the following is a type of deterrence based on the idea that the individual offender will be discouraged from criminality by experiencing criminal punishment?

- A. Incapacitation**
- B. General deterrence**
- C. Rehabilitation**
- D. Specific deterrence**
- E. Restoration**

38. Which one of the following best describes a Dolus Eventualis (indirect intention) state of mind?

- A. If the offender knows the circumstances of his act and desires to bring the harm, then his state of mind is indirect intention.**
- B. The offender is in dolus eventualis state of mind when he knows his act could cause harm and he does not want such consequence to follow.**

C. In dolus eventualis, since the criminal does not desire, he does not accept the occurrence of possible harm as a result of his own act.

D. The offender is in dolus eventualis state of mind when he has a fixed objective of bringing the harm done, a clear foresight of the consequence and desires the result.

E. The offender is in dolus eventualis state of mind if he is certain that harm will ensue but he proceeds with his action, anyway.

39. Identify the correct statement.

A. Criminalizing a behavior by interpreting criminal law is not prohibited under FDRE criminal code.

B. Punishing an offender by more than one type of punishment is an example of double jeopardy.

C. Criminal law prohibits its retroactive application in all situations.

D. Retroactive application of criminal law is possible if a new law benefits the offender.

E. Determining the retroactive application of criminal law is within the discretion of courts.

40. Which of the following is true pursuant to the Ethiopian Criminal Code?

A. Responsibility is not presumed

B. criminal irresponsibility even when circumstances so justify.

C. Loss of volition or cognition due to mental disease can lead to criminal irresponsibility

D. Loss of volition or cognition due to mental disease cannot lead to criminal irresponsibility.

E. Issues of loss of cognitive and volitional powers are not treated in the Criminal Code.

41. Which one of the following penalties does not apply to young offenders?

A. Fine

B. Imprisonment

C. Death penalty

D. Home arrest

E. Detention

42. One of the following categories of persons may commit crimes but they will not be responsible for their acts in Ethiopia. Who are they?

- A. Leaders of the country.**
- B. Young persons.**
- C. Persons with reduced mental capacity.**
- D. Infant persons.**
- E. Persons in a state of partial responsibility due to intoxication.**

43. The principle of equality before the law forbids:

- A. Treating criminals differently due to their criminal history.**
- B. Treating criminals differently due to their mental conditions.**
- C. Treating criminals differently due to the gravity of their crimes.**
- D. Treating criminals differently due to their age.**
- E. Treating criminals differently due to their political outlook.**

44. In Ethiopia, what does the expression juvenile delinquency refer to?

- A. A crime committed by a person who has not attained the age civil majority.**
- B. A crime committed by a person between the age of sixteen and eighteen.**
- C. A crime committed by a person between the age of nine and fifteen.**
- D. A crime committed by a person who has not attained the age of nine.**
- E. A crime committed by a person who has attained the age of sixteen.**

45. Identify the factor that cannot be used to mitigate penalty under the Criminal Code.

- A. Good character.**
- B. Simplicity of mind.**
- C. Provocation.**
- D. Repairing damages caused.**
- E. Misuse of power.**

46. Which of the following is true about inadvertent negligence?

- A. The accused does not foresee the harm as certainty but only as possibility.**
- B. The accused does not intend to commit the crime but accepts its consequences.**
- C. An accused acting by imprudence.**
- D. Acting by a crimina lack of foresight.**
- E. The accused is aware that his act may cause harm but he disregards this consequence. x**

47. Which of the following acts constitute a justifiable act?

- A Necessity.**
- B. Disciplinary measures.**
- C. Acts in respect of Military duties.**
- D. Professional duties.**
- E. Acts done to secure lawfully recognized private rights.**

48. Which of the following is a role of a medical expert in the determination of a criminal liability?

- A. Advising the court on the extent of the criminal punishment against the accused.**
- B. Investigating the extent of the accused's criminal responsibility and possible punishment.**
- C. Analyzing the medical results with pertinent provision of the criminal law.**
- D. Advising the court on the types of curative or protective measures that should be taken.**
- E. Identifying the perpetrator of a crime and the extent of harm inflicted against the victim**

49. One of the following is different from the others.

- A. Public Apology.**
- B. Fine.**
- C. Imprisonment.**
- D. Capital punishment.**
- E. Confiscation and sequestration.**

50. When the accused is unable to pursue his criminal activity to the end due to external factors, the stage in the commission of the crime is known as

A. Complete Attempt.

B. Impossible attempt.

C. Preparation.

D. Incomplete attempt.

E. Active Repentance.

51. Which of the following is a more appropriate criminal measure that may be imposed on young offenders?

A. Fine.

B. Admission to corrective centers.

C. Simple imprisonment.

D. Rigorous impressment.

E. Compulsory labor.

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